

Moved by Lakey

Seconded by Foreman

IN THE SENATE
SENATE AMENDMENT TO H.B. NO. 703

AMENDMENT TO THE BILL

On page 8 of the printed bill, following line 25, insert:

"SECTION 5. That Section 54-1220, Idaho Code, be, and the same is hereby amended to read as follows:

54-1220. DISCIPLINARY ACTION -- PROCEDURES. ~~(1) Any affected party may prefer charges of fraud, deceit, gross negligence, incompetence, misconduct or violation of any provision of this chapter, or violation of any of the rules promulgated by the board, against any individual licensee or certificate holder or against any business entity holding a certificate of authorization or against a person applying for a license or against a business entity applying for a certificate of authorization. Repeated acts of negligence may be considered as a gross act for disciplinary action. Such charges shall be in writing and shall be sworn to by the person or persons making them and shall be filed with the executive director of the board. The executive director of the board shall be considered an affected party and may be the person making and filing the charges.~~

~~(2) All charges, unless dismissed by the board as unfounded or de minimis, or unless settled informally, shall be heard by the board within six (6) months after the date they were received at the board office unless such time is extended by the board for justifiable cause.~~

~~(3) Administrative proceedings shall be governed by the provisions of chapter 52, title 67, Idaho Code.~~

~~(4) (1) If, after After an administrative hearing, the board votes in favor of sustaining the charges, the board may, in its discretion, impose an administrative penalty, not to exceed five thousand dollars (\$5,000) for deposit in the general fund of the state of Idaho. In addition, the board, in its discretion, may admonish, reprimand, suspend, revoke, refuse to renew, refuse to grant, or any combination thereof, the individual's license or certificate or a business entity's certificate of authorization. The board may also, in its discretion, require the an individual to practice under the supervision of another licensee or require the individual to successfully complete continuing education courses as may be prescribed by the board.~~

~~(5) (2) Notwithstanding the provisions of subsection (4) (1) of this section, any person who has violated the recordkeeping or continuing professional development requirements imposed by the rules of the board may, in lieu of disciplinary proceedings under this chapter or chapter 52, title 67, Idaho Code, elect to pay the board a penalty in the amount of four hundred dollars (\$400) for a first-time violation. Upon successful completion of the recordkeeping or continuing professional development requirements and payment of the penalty, the violation shall not be considered disciplinary~~

1 action under the provisions of this section and shall not be reported to any
2 national disciplinary database.

3 ~~(6) The board shall have jurisdiction over licensees and certificate~~
4 ~~holders whose licenses and certificates are not current, provided the action~~
5 ~~relates to services performed when the license was current and valid.";~~
6 and renumber subsequent sections accordingly.

7 On page 40, delete lines 3 and 4.

8 CORRECTION TO TITLE

9 On page 1, in line 10, following "SURVEYORS;" insert: "AMENDING SEC-
10 TION 54-1220, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISCIPLINARY AC-
11 TIONS AND PROCEDURES;".

12 On page 2, in line 28, delete "REPEALING SECTION 54-1220, IDAHO CODE,
13 RELATING TO DISCI-"; and in line 29, delete "PLINARY ACTIONS AND PROCE-
14 DURES;".